

****March 11, 2025****

****Sanction for Violation of GDPR****

The National Authority for the Supervision of Personal Data Processing completed, in February 2025, an investigation into the operator Noy Business Transactions SRL and found a violation of the provisions of Article 12 paragraphs (1)-(4) in relation to Article 15 paragraph (3) and Article 17 of Regulation (EU) 2016/679.

As such, the operator was sanctioned with a fine of 4,977.3 lei (equivalent to 1,000 EURO).

The investigation was initiated following a complaint alleging a possible violation of the provisions of Regulation (EU) 2016/679. Thus, a client complained that the operator did not provide a response to their request exercising their right of access to their personal data (image), requesting the recordings from the video cameras during their stay at the hotel operated by the operator.

During the investigation, the National Authority for the Supervision of Personal Data Processing found that the operator did not provide a timely written response that was adequate and complete to the individual's request, through which they exercised both their right of access and their right to erasure of their data.

As such, it was established that the provisions of Article 12 paragraphs (1)-(4) of Regulation (EU) 2016/679 were violated, in relation to Article 15 paragraph (3) and Article 17 of the same European act.

At the same time, the following corrective measures were imposed on the operator:

- to send a complete response to the request of the data subject, to the contact details indicated by them, by securely communicating the requested personal data, to the extent that they are still available, as well as information regarding the erasure of data, in accordance with the provisions of Article 15 paragraphs (3) and (4), Article 17, correlated with Article 12 of Regulation (EU) 2016/679;
- to ensure compliance with Regulation (EU) 2016/679 of the personal data processing operations, by adopting the necessary technical and organizational measures, including with regard to the proper training of the designated personnel for this purpose, so that the operator is able to analyze, correctly resolve, and appropriately respond to requests from data subjects exercising their rights, within the deadlines and according to the conditions provided by Articles 12-23 of Regulation (EU) 2016/679.

****Legal and Communication Department****

****N.A.S.P.D.C.P.****